

Syllabus

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SUPREME COURT OF THE UNITED STATES

Syllabus

WEIRDFANCOOKIE v. UNITED STATES

CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR
THE DISTRICT OF COLUMBIA

No. 26–5. Decided September 14, 2026

Petitioner weirdfancookie was sentenced to 72 hours of imprisonment in the district court for various convictions under Federal Criminal Code §§ 1612 and 1704. To secure that conviction, the Government introduced a video recording (known as exhibit A) depicting weirdfancookie throwing a molotov cocktail into a crowd of people. In their case in chief, the Government’s sole witness (who was also a victim) was used to authenticate the video recording. The witness testified that she recognized the video recording, gave details surrounding the video and its related events, and that it was an accurate depiction of the events, among other things. But during cross examination, she conceded that she could not be sure if she even saw the molotov cocktail being thrown. weirdfancookie objected to the admissibility of exhibit A and argued that exhibit A could not be authenticated under Federal Rule of Evidence 901 since the witness said she did not remember whether she saw a molotov cocktail being thrown.

Held: The district court did not abuse its discretion in admitting the video recording into evidence and finding it authentic. Pp. 3–7.

(a) Most cases that have come before this Court present questions of law. We review these questions of law *de novo*, literally meaning “anew.” A *de novo* standard of review means that the reviewing-court makes their own independent judgment on the question without any deference to the lower court—as if the court is hearing the case for the first time. But a different standard of review is used for questions regarding factual findings and matters of discretion. On matters of discretion, we look to see if the lower court abused its discretion. See *Highmark Inc. v. Allcare Health Mgmt. Sys., Inc.*, 572 U. S. 559 (2014).

Syllabus

Examples of discretionary matters, as is relevant here, are matters dealing with evidence, something of which the district court must deal with everyday. The present case asks us to decide, considering the circumstances below, whether the video recording can be sufficiently authenticated. This is an evidentiary question about authentication. And because the inquiry is an evidentiary question, it triggers our deferential abuse-of-discretion standard of review. Pp 2–3.

(b) Authentication, which is provided in Federal Rule of Evidence 901, is a required condition precedent to admitting evidence. This is because the trier of fact must know first that the evidence is genuine and that the evidence is what it claims to be. The authentication requirement is not a high or demanding bar. It is also not a rigid rule, but a flexible and general principle. *weirdfancookie* spells out two recognized methods of authentication: the silent witness theory, and pictorial testimony. The parties agree that the silent witness theory was not used as a method of authenticating the video recording. So, the only other method of authentication, by *weirdfancookie*'s proffering, is pictorial testimony. But even that method, *weirdfancookie* says, was not satisfied for authentication. To support this, *weirdfancookie* primarily argues that because the witness did not see her or her throwing the molotov cocktail, the witness could not authenticate the video recording. But we hold that Rule 901(a) did not require it. It did not matter whether the witness saw *weirdfancookie* or the molotov cocktail being thrown. All the witness's testimony, taken together with circumstances, was sufficient to authenticate the video recording even though the witness did not see *weirdfancookie*'s person or the exact moment where *weirdfancookie* threw the molotov cocktail. The witness testified as to her own personal knowledge of what she was doing surrounding the time of events, provided the location as to her personal knowledge, identified people and some of their names who were also present and depicted, and gave other details. All these details and testimony, taken together, "sufficiently connect[s]" the video recording to *weirdfancookie* "to warrant their submission." *United States v. Inserra*, 34 F. 3d 83 (CA2 1994).

For these reasons, we discern no abuse of discretion from the district court. As we have analyzed, and as the district court discussed, the "[a]pppearance, contents, substance, internal patterns, or other distinctive characteristics, taken in conjunction with circumstances," altogether confirm the video recording's authenticity. *United States v. Echeverri*, 982 F.2d 675 (CA1 1993). We see no error, abuse of discretion, and any other reason to depart from the district court's "ultimate resolution of authenticity." *United States v. Branch*, 970

Syllabus

F. 2d 1368 (CA4 1992). To be sure, the witness’s limited recollection and memory may very well be attacked (as well as the video). But as the district court concluded, and with which we agree, the witness’s limitation “go only to the evidentiary weight . . . rather than to its admissibility.” *Clayton*, 643 F. 2d 1071 (CA5 1980). Pp. 3–7.

Affirmed.

INSLEE, J., delivered the opinion for a unanimous Court.

Opinion of the Court

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SUPREME COURT OF THE UNITED STATES

No. 26–5

WEIRDFANCOOKIE, PETITIONER *v.* UNITED STATES

ON WRIT OF CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

[September 14, 2026]

JUSTICE INSLEE delivered the opinion of the Court.

Petitioner weirdfancookie was sentenced to 72 hours of imprisonment in the district court for various convictions under Federal Criminal Code §§ 1612 and 1704. To secure that conviction, the Government introduced a video recording (known as exhibit A) depicting weirdfancookie throwing a molotov cocktail into a crowd of people. In their case in chief, the Government’s sole witness (who was also a victim) was used to authenticate the video recording. The witness testified that she recognized the video recording, gave details surrounding the video and its related events, and that it was an accurate depiction of the events, among other things. But during cross examination, she conceded that she could not be sure if she even saw the molotov cocktail being thrown. The witness also conceded she could not give a moment-by-moment picture of the events or the video, at least without the video refreshing her memory.

weirdfancookie objected to the admissibility of exhibit A. weirdfancookie argued that exhibit A could not be authenticated under Federal Rule of Evidence 901 since

Opinion of the Court

the witness said she did not remember whether she saw a molotov cocktail being thrown. The district court disagreed and kept exhibit A admitted, saying that authentication under 901 is a low threshold, that the testimony sufficiently authenticated exhibit A, and that the witness's limitation in memory only bears on the weight of the evidence.

We agreed to review the case to decide whether the video recording could be authenticated. 1 U. S. ____ (2026),

I

We first decide the appropriate standard of review.

Most cases that have come before this Court present questions of law. The most common type of these questions, for example, are those requiring some sort of statutory or constitutional interpretation. And we review these questions of law *de novo*, literally meaning “anew.” A *de novo* standard of review means that the reviewing-court makes their own independent judgment on the question without any deference to the lower court—as if the court is hearing the case for the first time. But a different standard of review is used for questions regarding factual findings and matters of discretion. On these types of questions, we afford varying degrees of deference to the court being reviewed. On matters of discretion (which will become relevant soon), we look to see if the lower court abused its discretion. See *Highmark Inc. v. Allcare Health Mgmt. Sys., Inc.*, 572 U.S. 559 (2014); see also *Pierce v. Underwood*, 487 U.S. 552, 558 (1988).

Examples of discretionary matters, as is relevant here, are matters dealing with evidence, something of which the district court must deal with everyday. “A district court is accorded a wide discretion in determining the admissibility of evidence under the Federal Rules.” *United States v. Abel*,

Opinion of the Court

469 U. S. 45, 54 (1984). The district court, as a trial court, retains a “gatekeeper’ role . . . in screening such evidence.” *General Electric Co. v. Joiner*, 522 U. S. 136, 142 (1997). We have consistently recognized and appreciated the district court’s “sound judgment” in weighing evidentiary admissibility factors in the first instance. *E.g.*, *Abel*, 469 U. S., at 54.

Both parties agree that the present case is an evidentiary one. It asks us to decide, considering the circumstances below, whether the video recording can be sufficiently authenticated. This is an evidentiary question about authentication. And because the inquiry is an evidentiary question, as we have explained, it triggers our deferential abuse-of-discretion standard of review.¹

II

Authentication (which is provided in Federal Rule of Evidence 901) is a required condition precedent to admitting evidence. Rule 901(a) provides, “To satisfy the requirement of authenticating or identifying an item of evidence, the proponent must produce evidence sufficient to support a finding that the item is what the proponent claims it is.” Of course, because the trier of fact must know first that the evidence is genuine and that the evidence is what it claims to be. This requirement, as both parties agree, is not a high or demanding bar. Rule 901 then goes on to provide a non-exhaustive list of illustrative examples in 901(b), which showcases the notion that authentication is in no way a hardline or rigid rule, but rather a flexible and “general principle.” Advisory Committee’s Notes on Fed. Rule Evid. 901; see also *United States v. Rembert*, 863

¹ To be sure, while deference is owed to the District Court, a judgment based on an erroneous application of the law will get reversed.

Opinion of the Court

F.2d 1023 (CADC 1988) (explaining that Rule 901 allows a “general application”); see also *United States v. Echeverri*, 982 F.2d 675 (CA1 1993) (saying that “[t]he Federal Rules of Evidence adopt[s] a flexible approach” to authentication).

weirdfancookie spells out two recognized methods of authentication: the silent witness theory, and pictorial testimony.² Under the silent witness theory (or model . . . or method . . . or approach), authenticity can be satisfied with “[e]vidence describing a process or system and showing that it produces an accurate result.” Fed. Rule Evid. 901(b)(9). Through pictorial testimony, authenticity can be satisfied with “[t]estimony that an item is what it is claimed to be.” Fed. Rule Evid. 901(b)(1).³ The parties do not dispute that the silent witness theory was not (and could not be) used as a method of authenticating the video recording. So, the only other method of authentication, by weirdfancookie’s proffering, is pictorial testimony.

The parties agree that the witness was used to authenticate the video recording through pictorial testimony. But weirdfancookie contends that pictorial testimony was not satisfied and could not be used for authentication. To support this, weirdfancookie primarily argues that because the witness did not see her or her throwing the molotov cocktail, the witness could not

² Pictorial testimony may sometimes be used interchangeably with the similar term “witness recognition”. Although perhaps different concepts, we do not think the distinction is relevant for the purposes of this case.

³ It may be helpful to note that, as provided in the illustrative examples of Rule 901(b), pictorial testimony “*contemplates a broad spectrum* ranging from testimony of a witness who was present at the signing of a document to testimony establishing narcotics as taken from an accused and accounting for custody through the period until trial.” Advisory Committee’s Notes on Fed. Rule Evid. 901 (emphasis added).

Opinion of the Court

authenticate the video recording. To be more specific, the witness must have “perceived or observed that which [she] testifies to.” Brief for Petitioner 12 (quoting *M.B.A.F.B. Federal Credit Union v. Cumis Insurance Society, Inc.*, 681 F.2d 930 (CA4 1982) (citation modified)). weirdfancookie analogizes the witness to a blind person since the witness was in first person and an individual was standing directly in front of her. And so, the only thing in the witness’s field of view was “the bald head that hovered mere millimeters away from her face.” Brief for Petitioner 13. The witness, therefore, could not see any object or event surrounding her like the molotov cocktail and other people. All this must mean, then, that the witness testified that she did actually see weirdfancookie and the molotov cocktail being thrown. But she did not. And we hold that Rule 901(a) does not require it.

Authentication, remember, is not a high or demanding bar. It did not matter whether the witness saw weirdfancookie or the molotov cocktail being thrown “with [her] own eyes.” Brief for Petitioner 11 (quoting *Kleveland v. United States*, 345 F.2d 134 (CA2 1965) (internal quotation marks omitted)). All the witness’s testimony, taken together with circumstances, was sufficient to authenticate the video recording even though the witness did not see weirdfancookie’s person or the exact moment where weirdfancookie threw the molotov cocktail. See *United States v. Clayton*, 643 F.2d 1071 (CA5 1980) (“A witness qualifying a photograph need not be the photographer or see the picture taken; it is sufficient if he recognizes and identifies the object depicted and testifies that the photograph fairly and correctly represents it”).⁴

⁴ We think weirdfancookie argues that the phrase “recognizes and identifies the object depicted” in *Clayton* means that the witness must

Opinion of the Court

The witness was present at the incident. The witness was depicted in the video recording. The witness recognized the video recording and testified that it was an accurate depiction of the incident. The witness testified as to her own personal knowledge of what she was doing surrounding the time of events, provided the location as to her personal knowledge, identified people and some of their names who were also present and depicted, and gave other details. All these details and testimony, taken together, “sufficiently connect[s]” the video recording to weirdfancookie “to warrant their submission.” *United States v. Inserra*, 34 F. 3d 83 (CA2 1994).

Even if the record below does not satisfy the needs of pictorial testimony for authentication (which, again, is a broad spectrum), the witness’s testimony still sufficiently authenticates the video recording. Pictorial testimony and the silent witness theory are not the sole and only methods of authentication. The methods instead “provide guidance to the district court when called upon to make rulings on authentication issues.” *United States v. Branch*, 970 F. 2d 1368 (CA4 1992). In fact, the illustrative examples in Rule 901(b) confirm this notion as it lists a whole host of other authentication approaches. All this support the points that “[t]he Federal Rules of Evidence adopt[s] a flexible approach” to authentication, *Echeverri*, 982 F. 2d 675 (CA1

have seen weirdfancookie throwing the molotov cocktail. We think that argument is unavailing in the context of authentication. See, e.g., *United States v. Rembert*, 863 F. 2d 1023 (CA9 1988) (Even if direct testimony as to foundation matters is absent ... the contents of a photograph itself, together with such other circumstantial or indirect evidence as bears upon the issue, may serve to explain and authenticate a photograph sufficiently to justify its admission into evidence (quoting *United States v. Stearns*, 550 F. 2d 1167, 1171 (CA9 1977) (internal quotation marks omitted))).

Opinion of the Court

1993), and that authentication is within the rightful discretion of the district court.

For these reasons, we discern no abuse of discretion from the district court. As we have analyzed, and as the district court discussed, the “[a]pppearance, contents, substance, internal patterns, or other distinctive characteristics, taken in conjunction with circumstances,” altogether confirm the video recording’s authenticity. *Id.* We see no error, abuse of discretion, and any other reason to depart from the district court’s “ultimate resolution of authenticity.” *United States v. Branch*, 970 F.2d 1368 (CA4 1992). To be sure, the witness’s limited recollection and memory may very well be attacked (as well as the video). But as the district court concluded, and with which we agree, the witness’s limitation “go only to the evidentiary weight . . . rather than to its admissibility.” *Clayton*, 643 F.2d 1071 (CA5 1980). We need not decide questions about evidentiary weight in this case since those questions are not before us. Any questions about evidentiary weight should have been raised in the district court in the first instance.

We have considered the parties’ other arguments in detail. Finding that they lack merit or are not necessary to decide, we decline to discuss them.

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The judgment of the District Court for the District of Columbia is affirmed.

It is so ordered.